Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1352
Claimant:	Heather Eaton
Adjuster:	Darin Tyler

23 Sep 2024 - Claim opened following report of a sideswipe collision during a lane change on a multi-lane roadway. Insured vehicle contacted the claimant's vehicle on the driver's side rear quarter panel. Both drivers reoprted to be stopped at the scene. Police report requested. Claimant reports neck and lower back pain and has not yet sought treatment.

27 Sep 2024 - Spoke with claimant by phone. Claimant confirmed no attorney retained and prefers to handle the claim directly. Claimant describes lower back strain with stiffness and limited range of motion, mainly when sitting for long periods. Advised claimant of the medical documentation needed and the process for submitting bills and records.

5 Oct 2024 - Recorded insured's statement. Insured states they checked the mirror and signal before moving into the adjacent lane but did not see the claimant vehicle in the blind spot. Insured accepts that the lane change was the cause of contact. Photos of both vehicles reviewed and consistent with the reported impact point.

8 Oct 2024 - Claimant provided initial medical visit notes. Diganosis listed as acute lumbar strain with muscle spasm. Treatment plan includes rest, over-the-counter pain relief, and physical therapy referral. Work restrictions noted for the next two weeks. Injury evaluation is ongoing and reserve set pending further records.

14 Oct 2024 - Follow-up call with claimant. Claimant reports pain has improved slightly but still limits lifting and driving for extended periods. Physical therapy scheduled to begin shortly. Liability accepted on insured's side, pending final review of the police report. Claim remains open for injury evaluation and property damage estimate.

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Recorded Statement

Claim number:	C-1352
Statement of:	Heather Eaton
Taken by:	Darin Tyler
Date:	21 Sep 2024

Q: Tahnks for taking the time to give this recorded statement. Can you state your full name for the record?

A: Sorry, I'd rather keep my name off the recording for now. You can use the claim number.

Q: That works. Can you tell me where you were when the accident happened?

A: I was driving on the main road in Baytown, Texas, heading toward the east side of town. I had just gotten into the right lane to make a turn.

Q: Was there anything unusual about traffic at that moment?

A: Not really. It was moderately busy, but moving steadily. I checked my mirror, saw the lane looked clear, and started to change over.

Q: What happened next?

A: A vehicle in the lane I was moving into clipped my passenger side as I merged. There was a scraping sound and my car jerked toward the shoulder. I got it under control, pulled over, and stopped.

Q: Did the other driver stop as well?

A: Yes, they pulled up a little ahead of me. We exchanged information and they seemed apologetic. They said they didn't see me coming.

Q: Were you hurt at the scene?

A: I felt okay right away, just a little shaken. But by the next morning my lower back was really tight and sore. It's a strain, I think. I've been having trouble sitting for long periods and bending over.

Q: Have you seen a doctor or received any treatment since?

A: Yes, I went to urgent care and they told me it looked like a muscle strain. They gave me medication and told me to rest and do some gentle stretching. I'm following up with my own doctor this week.

Q: Is there anything else you'd like to add to your statement?

A: Just that I was driving carefully and I believe the other driver should have seen me. I'm hoping this can be resolved without too much hassle.

Q: Thank you. That concludes the statement.